

SEOUL METROPOLITAN GOVERNMENT ORDINANCE ON THE DESIGNATION AND OPERATION OF LOW-EMISSION AREAS

Enactment No. 9833, Sep. 29, 2025

Article 1 (Purpose)

The purpose of this Ordinance is to prescribe the matters necessary for the designation and operation of low-emission areas in Seoul Metropolitan City in order to stimulate the popularization of low-emission motor vehicles pursuant to Article 29-2 of the Special Act on the Improvement of Air Quality in Air Control Zones and to conserve and improve air quality.

Article 2 (Definition)

The definitions of the terms used in this Ordinance shall be as follows:

1. "Low-emission area" refers to an air control zone in subparagraph 1 of Article 2 of the Special Act on the Improvement of Air Quality in Air Control Zones (hereinafter referred to as the "Act") and Article 2 of the Enforcement Decree of the Act (hereinafter referred to as the "Decree") deemed necessary to stimulate the popularization of low-emission motor vehicles and to conserve and improve air quality.
2. "Motor vehicle emission class" refers to the class of air pollutant emissions of motor vehicles in subparagraph 1 of Article 30 of the Act.
3. "Exhaust emission reduction device" refers to a device installed or replaced on motor vehicles or items of construction machinery to reduce air pollution emitted by such motor vehicles or construction machinery under subparagraph 17 of Article 2 of the Clean Air Conservation Act, and conforms with the reduction efficiency determined in Article 9 of the Enforcement Rule of the Clean Air Conservation Act.
4. "Low-emission engine" refers to an engine (including parts used to retrofit an engine) designed to reduce the amount of air pollutants emitted by motor vehicles or construction machinery under subparagraph 18 of Article 2 of the Clean Air Conservation Act, which conforms with the permissible emission levels determined in Article 10 of the Enforcement Rule of the Clean Air Conservation Act.

Article 3 (Designation of Low-Emission Areas, Etc.)

- (1) The Seoul Metropolitan City Mayor (hereinafter referred to as the "Mayor") may designate low-emission areas in consideration of regional and industrial characteristics, such as current air pollutant emissions, populations currently exposed to air pollutants, and traffic volume.
- (2) The Mayor may modify or lift the designation of a low-emission area for such causes as changes to the conditions for designating low-emission areas or the cause of such designation ceasing to exist.
- (3) The Mayor, in seeking to make, modify or lift a low-emission area designation, shall consult with the heads of the competent administrative agencies, such as the Seoul Metropolitan Police Agency Chief or the police chief with jurisdiction, and then hear the opinions of the local residents, relevant experts, etc.
- (4) The Mayor, in seeking to make, modify or lift a low-emission area designation under Article 29-2 (7) of the Act, shall announce the relevant facts with the following matters in the Seoul Metropolitan Government Gazette, and shall notify the Minister of Environment without delay:
 1. The location of the low-emission area;
 2. The date and time of designation of the low-emission area;
 3. The reason for making, modifying or lifting the designation of a low-emission area;
 4. The period and hours during which the operation of motor vehicles will be limited in the low-emission area;
 5. The types of motor vehicles whose operations will be limited in the low-emission area.

Article 4 (Motor Vehicle Operation in Low-Emission Areas)

- (1) The Mayor may allow motor vehicles other than the following to operate within low-emission areas under Article 29-2 of the Act:
 1. Vehicles with an emission class of 5;
 2. Vehicles with an emission class of 4 that run on diesel (Provided, however, that they may be excluded from operating only in those low-emission areas where the Mayor deems the limitation necessary).
- (2) Notwithstanding the subparagraphs of paragraph (1), motor vehicles under Article 30-2 of the Decree and the following motor vehicles may operate in low-emission areas:
 1. A motor vehicle installed with an exhaust emission reduction device, or whose engine has been retrofitted into a low-emission engine;

2. A motor vehicle in which an exhaust emission reduction device cannot be installed, and which is owned by any of the following persons;

(a) A recipient under subparagraph 2 of Article 2 of the National Basic Living Security Act or a person in the second-lowest income bracket under subparagraph of Article 2 of the same Act;

(b) A micro enterprise under Article 2 of the Framework Act on Micro Enterprises.

Article 5 (Enforcement Action on Operation-Limited Motor Vehicles)

(1) The Mayor may establish and operate enforcement systems to take enforcement actions against motor vehicles that are restricted from operating in low-emission areas under Article 4, and may recruit enforcement public officials to take enforcement actions against such vehicles.

(2) Public officials responsible for enforcement of the restriction shall make it clear and easy for members of the public to recognize that they are performing enforcement duties.

Article 6 (Imposition of Administrative Fines on Motor Vehicles that Infringe the Restriction, Etc.)

(1) The Mayor shall impose an administrative fine of KRW 100,000 under Article 49 (5) of the Act on the owner of a motor vehicle who operates, without justifiable cause, a motor vehicle whose operation is restricted in low-emission areas.

(2) The imposition of the administrative fine may be withdrawn if the owner of the motor vehicle proves that the operation of the motor vehicle is permitted under Article 4.

(3) The advance notice, imposition, appeal, and other related procedures concerning the administrative fines under paragraph (1) shall comply with the Act on the Regulation of Violations of Public Order.

Addendum <No. 9833, Sep. 29, 2025>

This Ordinance shall enter into force on the date of its promulgation.